

**Before the
FEDERAL MARITIME COMMISSION**

DOCKET NO. 24-16

SAMSUNG ELECTRONICS AMERICA, INC.

v.

COSCO SHIPPING LINES CO., LTD

RESPONDENT’S UNOPPOSED MOTION FOR ENLARGEMENT OF TIME

Pursuant to 46 C.F.R. §§ 502.62(b)(1) and 502.102, Respondent COSCO Shipping Lines Co., Ltd. (“COSCO”) respectfully requests that the time for it to answer the Verified Amended Complaint of Samsung Electronics America, Inc. (“SEA” or “Complainant”) be enlarged by seven (7) days.¹ In support of its motion, Respondent states as follows:

1. Pursuant to the Order on Motion to Dismiss, dated April 11, 2025 (the “April 11 Order”), the Presiding Officer ordered Respondent to “file its answer to the amended complaint no later than 10 days following service of the amended complaint....” April 11 Order at 19.

¹ Respondent is aware that motions to extend must normally be filed at least seven days before the existing due date, but that this requirement may be excused for “reasonable grounds,” 46 C.F.R. § 502.102(a). Reasonable grounds exist here because Complainant does not object to the extension and because the Amended Complaint was filed at COB Friday, April 25, 2025, and it took a few business days for Respondent to determine that some additional time would be necessary.

2. SEA filed and served its Amended Complaint on April 25, 2025. As a result, the current deadline for Respondent to file its answer is May 5, 2025.

3. Respondent seeks an extension of seven (7) days, through and including May 12, 2025, to file its answer to the Amended Complaint. Respondent submits that it has good cause for the requested extension:

a. Pursuant to the April 11 Order, SEA had fourteen (14) days to file an amended complaint “specifying the amount of damages it seeks.” April 11 Order at 19.

b. Despite the clear language of the April 11 Order, SEA filed its Amended Complaint with other unauthorized changes to the complaint while also continuing to allege Counts II and III, which have been dismissed, resulting in confusion and additional time needed by Respondent to review and answer.

c. Respondent anticipates that its answer will include a counterclaim, and Respondent anticipates that it will also file a third-party complaint, for which additional time is needed for counsel to confer with COSCO, considering the different time zones for counsel in the United States and COSCO management personnel located in China.

d. Pursuant to 46 C.F.R. § 502.71(a), counsel for COSCO conferred with counsel for SEA in a good faith effort to determine whether SEA opposes the relief sought in this motion. Counsel for SEA stated that SEA does not object to the requested extension.

4. In light of these considerations, an enlargement of seven (7) days is reasonable, will not prejudice Complainant, and will not materially impact the schedule or proceedings in this case. The only other event that has been scheduled is the parties’ joint status report due

within “15 days after the answer is filed,” which is intended to confirm that the parties have “addressed the requirements of the Initial Order...” April 11 Order at 19.

For the foregoing reasons, Respondent respectfully requests that it be granted a seven (7) day extension, through and including May 12, 2025, to file its answer to the Amended Complaint.

DATED: April 30, 2025

Respectfully submitted,

/s/ Rebecca A. Fenneman

**ATTORNEYS FOR RESPONDENT,
COSCO Shipping Lines Co., Ltd.**

JEFFREY/FENNEMAN LAW +
STRATEGY, PLLC

Eric C. Jeffrey
EJeffrey@JeffreyFenneman.com
Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
Kaya C. Massey
Kmassey@JeffreyFenneman.com
Nicholas L. Webb
NWebb@JeffreyFenneman.com

700 12th Street, NW Suite 700
Washington, DC 20005

NIXON PEABODY, LLP

Gordon L. Lang
Glang@nixonpeabody.com

Brian J. Whittaker
BWhittaker@nixonpeabody.com

Martha A. Medina
MMedina@nixonpeabody.com

799 9th St. NW Suite 500
Washington, DC 20001-5327

CERTIFICATE OF SERVICE

I certify that on the 30th day of April 2025, a true and correct copy of the foregoing **MOTION FOR ENLARGEMENT OF TIME** was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

ATTORNEYS FOR COMPLAINANT SAMSUNG ELECTRONICS AMERICA, INC.: HOLLAND & KNIGHT LLP

Christopher R. Nolan
chris.nolan@hklaw.com
31 West 52nd Street
New York, NY 10019

Gerald A. Morrissey III
gerald.morrissey@hklaw.com
Carrol P. Hand
carrol.hand@hklaw.com
Kristine O. Little
kristine.little@hklaw.com
800 17th Street NW, Suite 1100
Washington, D.C. 20006

/s/ Martha A. Medina
Martha A. Medina
MMedina@nixonpeabody.com
Tel: (202)585-8000
NIXON PEABODY LLP
799 9th St. NW Suite 500
Washington, DC 20001-5327